AS TO THE ADMISSIBILITY OF

Application No. 25517/94
by Trevor ARTINGSTOLL
against the United Kingdom

The European Commission of Human Rights sitting in private on 3 April 1995, the following members being present:

MM. C. A. NØRGAARD, President
H. DANELIUS
C.L. ROZAKIS
S. TRECHSEL
A.S. GÖZÜBÜYÜK
A. WEITZEL
J.-C. SOYER
H.G. SCHERMERS
Mr. F. MARTINEZ
Mrs. J. LIDDY
MM. L. LOUCAIDES
J.-C. GEUS
M.A. NOWICKI
I. CABRAL BARRETO
B. CONFORTI
N. BRATZA
I. BÉKÉS
J. MUCHA
E. KONSTANTINOV
D. SVÁBY

Mr. H.C. KRÜGER, Secretary to the Commission

Having regard to Article 25 of the Convention for the Protection of Human Rights and Fundamental Freedoms;

Having regard to the application introduced on 3 May 1994 by Trevor ARTINGSTOLL against the United Kingdom and registered on 3 November 1994 under file No. 25517/94;

Having regard to the report provided for in Rule 47 of the Rules of Procedure of the Commission;

Having deliberated;

Decides as follows:

THE FACTS

The applicant is a British citizen, born in 1926 and resident in Cambridge. The facts as submitted by the applicant may be summarised as follows.

The applicant lives alone as a tenant in a ground floor flat in sheltered housing accommodation provided by Cambridge County Council ("the Council"). The applicant has submitted a letter from the Council which states that prior to moving into this accommodation the applicant received a leaflet, with the lease, outlining the policy of the Council against allowing pets, other than small caged animals, caged birds and fish, in the housing scheme in question ("the Council policy").

On 9 December 1992 the applicant wrote to the Council stating that he "wanted to make sure there is no Council barrier" to his keeping an alsatian dog (which had been offered to him as a gift) in his flat.

By letter dated 22 December 1992 the Council refused permission in accordance with existing Council policy, which had been outlined in the leaflet given to the applicant when he was offered the tenancy. The reasons for the Council policy, highlighted by the Council, were the safety of other residents in communal areas, possible disturbances to other residents and additional cleaning requirements in the corridors. The alsatian dog was subsequently put down.

On 23 December 1992 the applicant responded to the Council pointing out, inter alia, that it is now accepted in medical circles that the mental and physical well-being of the aged is improved by keeping a pet in that a pet encourages older people to be less sedentary and decreases stress, loneliness, boredom and depression. He pointed out specifically that medical research had shown that a person's heart rate decreases by 20% when that person strokes a pet. In addition, the applicant pointed out that it should not be presumed that the owners of pets would allow fouling of corridors. He pointed out that the Council policy was arbitrary because there would be no question of danger if the type of animal is made a condition of keeping a pet. He stated that, inter alia, cats and terriers should be allowed in the housing scheme.

In January 1993, the Council stated that, since the Council policy was formulated some years ago, since the original Council policy document could not be found and in view of the applicant's comments, the Council's Management Sub-Committee would review the position.

On 10 February 1993 a report on pets in sheltered accommodation was sent to the Housing Management Sub-Committee. The background section to this report read as follows:

> "The policy has been, for a long time, that residents in sheltered schemes should only be able to keep small caged animals, caged birds, and fish as pets. When an offer of accommodation is made, the prospective tenant is given a leaflet on the role of sheltered accommodation, which states that sheltered accommodation is 'not ... especially suitable for cats or dogs'."

This report also included detailed arguments for and against pets in sheltered accommodation and a recommendation against changing the Council policy.

In March 1993 the Sub-Committee recommended that a survey of residents be carried out, to establish their views on the matter, prior to the Sub-Committee taking a final decision.

By letter dated 17 August 1993 the Council initiated a random survey of a total of 70 residents in 14 similar sheltered housing schemes (being 15% of the total number of residents), requesting those residents' views on allowing dogs and cats in the housing schemes. 59% of the residents returned the questionnaires and approximately 75% of those residents voted against allowing cats and dogs in sheltered housing. A number of reasons were given by the residents who voted against, including fouling in grounds and corridors, noise, health and hygiene, the unsuitability of flats in the housing scheme, the safety of other residents and the risk of abandonment of a pet in the event of its owner being taken ill.

The results of the survey were compiled in a report dated 17 November 1993. The "background" section to this report read as follows:

> "The issue of keeping pets in sheltered housing schemes arose when a resident wanted to keep a dog. The practice has always been not to allow cats and dogs in sheltered schemes with internal communal areas, but we could find no policy decision on this."

The report was put before the Sub-Committee on 17 November 1993. The Sub-Committee was firmly of the view that the ban on dogs should remain but had some detailed discussion in respect of relaxing the controls on cats. In the end, the Sub-Committee recommended a continuance of the Council policy. The decision was communicated to the applicant and the other residents by letters dated 2 and 3 December 1993 respectively. Both of these letters referred to the opinions expressed by the residents and to the balance to be struck between the expressed advantages and disadvantages of allowing dogs and cats in the housing schemes.

In a letter to the applicant dated 8 December 1993, the Council stated as follows:

> "I understand that you do not wish to move, but pets are allowed in other Council flats, including sheltered flats which do not have internal communal areas. It may be something you wish to reconsider in light of <the above-described> decision, (though we could obviously not guarantee to be able to rehouse you)."

In late 1993 the applicant offered to install, at his own expense, a street door in his flat, which would mean that he could avoid using the communal areas in the housing scheme. The Council withheld a decision on the applicant's proposal pending the outcome of the Ombudsman's decision (the applicant having already referred the matter to the Ombudsman). In or around March or April 1994 the applicant's complaint to the Ombudsman was rejected.

By letter dated 4 August 1994 the Council began a procedure to have the existing Council "practice" of not allowing pets included, with the consent of the residents, as a specific condition in existing leases of dwellings in sheltered housing schemes, including the housing scheme in which the applicant resides. On 5 October 1994 it was reported in the press that residents of another sheltered housing scheme in Cambridge could keep pet cats.

COMPLAINTS

The applicant complains about the Council policy which prohibits, inter alia, the keeping of small dogs and cats as pets in the sheltered housing scheme in which he resides, and argues that the Council policy is an interference with his right to respect for his private life, guaranteed by Article 8 of the Convention.

The applicant also complains under Article 11 of the Convention in that the Council policy interferes with his right to freedom of association.

THE LAW

The applicant complains that the Council's ban on small dogs and cats is an interference with his right to respect for his private life as guaranteed by Article 8 (Art. 8) of the Convention.

Article 8 (Art. 8) of the Convention, insofar as is relevant, reads as follows:

> "1. Everyone has the right to respect for his private ... life ...
>
> 2. There shall be no interference by a public authority with the exercise of this right except such as is in accordance with the law and is necessary in a democratic society in the interests of ... public safety ... for the prevention of disorder ... for the protection of health ... or for the protection of the rights and freedoms of others."

The applicant also complains that the Council policy against pets interferes with his freedom of association in violation of Article 11 (Art. 11) of the Convention.

The question arises whether the applicant's complaints fall within the scope of these Convention provisions. As regards Article 11 (Art. 11) of the Convention, the Commission considers that this provision does not include a right of association with animals and accordingly finds that the applicant's complaint under Article 11 (Art. 11) of the Convention must be rejected as being incompatible ratione materiae with the provisions of the Convention, pursuant to Article 27 para. 2 (Art. 27-2) of the Convention.

As to whether the applicant's complaints are within the scope of Article 8 (Art. 8) of the Convention, the Commission refers to previous case-law in which it has held that the keeping of a domestic pet does not fall within the sphere of the owner's private life for the purposes of Article 8 (Art. 8) of the Convention (No. 6825/74, X v. Iceland, Dec. 18 May 1976, D.R. 5 p. 86). However, the Commission does not deem it necessary to determine whether the present case may be distinguished on the basis of the recent medical evidence submitted by the applicant, because the complaint is in any event inadmissible for the reasons set out below.

From the documents submitted by the applicant the Commission notes that, when the applicant received the lease of his apartment, he also received a leaflet from the Council outlining the Council policy on domestic pets. Though he later wrote to the Council stating that he wanted "to be sure there was no barrier" to his having a dog in his flat, the applicant has not denied that he received that leaflet prior to signing the lease for his flat. Insofar as the applicant may claim that the Council policy was insufficiently clear, the Commission notes that there is no evidence that the applicant made any attempt to clarify the meaning or impact of the Council policy.

Accordingly, in the circumstances of this case, the Commission does not consider that the State can be held responsible for the alleged interference with the applicant's private life. The Commission must therefore reject the applicant's complaint under Article 8 (Art. 8) of the Convention as being manifestly ill-founded, pursuant to Article 27 para. 2 (Art. 27-2) of the Convention.

For these reasons, the Commission, by a majority,

DECLARES THE APPLICATION INADMISSIBLE.

Secretary to the Commission — President of the Commission

(H. C. KRÜGER) — (C.A. NØRGAARD)